

General Knowledge

Indian Polity

STUDY NOTES

PRESIDENT

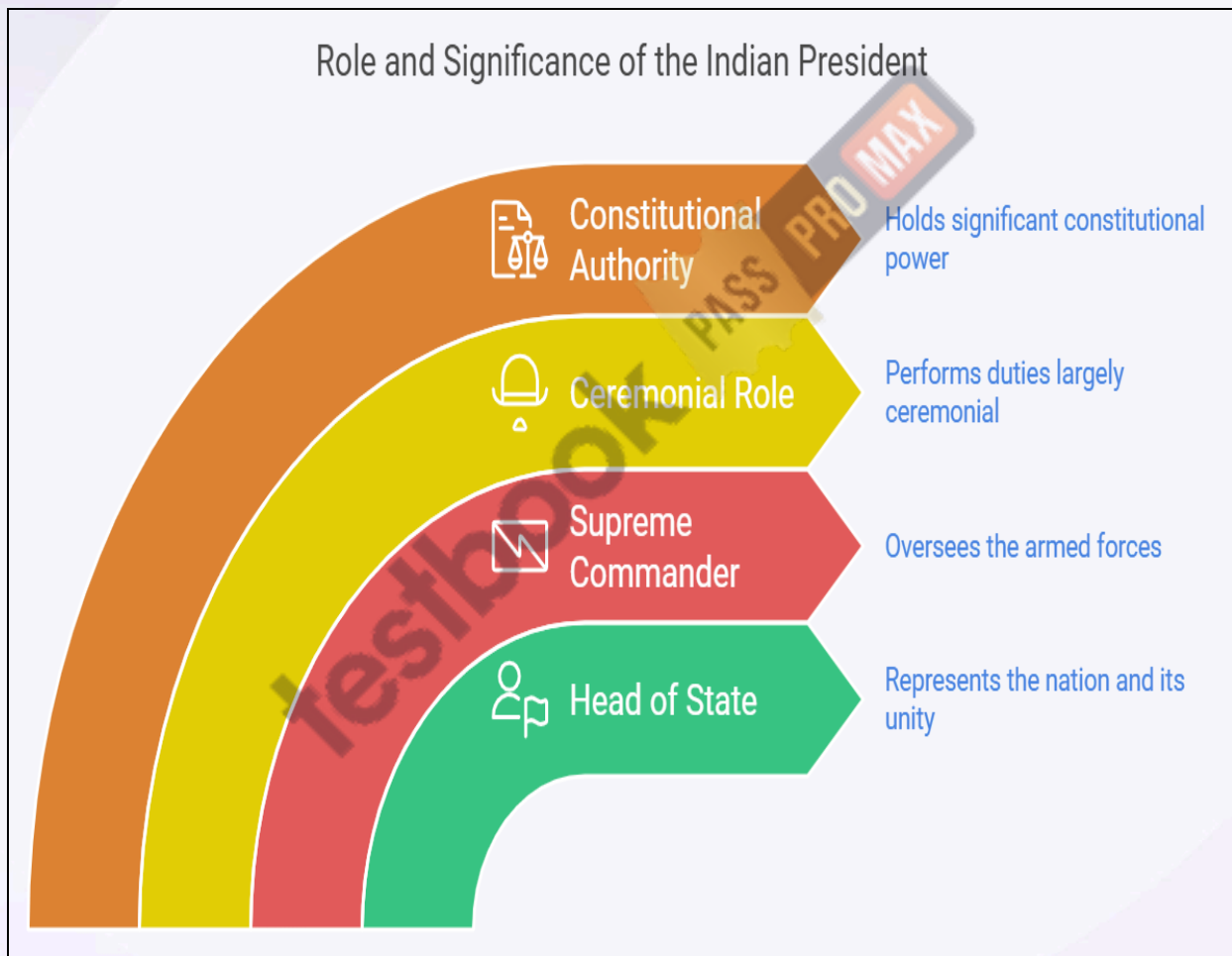
PREAMBLE
PEOPLE OF INDIA, h



PRESIDENT

Introduction

- The President serves as the **head of state and is the Supreme Commander of the Indian Armed Forces.**
- Although the President holds significant constitutional authority, the role is largely ceremonial, with powers exercised on the advice of the Council of Ministers.
- The office succeeded the British monarch's role during colonial rule, symbolizing the unity of the nation.



Election of the President

- **Article 52:** Establishes the presidency in the Constitution.
- **Indirect Election:**
 - Elected by an electoral college, not directly by the populace.

Eligibility Criteria (Article 58)

Candidates Eligible to Run

- Current Vice-President.
- Governors of States.
- Union or State Ministers, including the Prime Minister.

Election Process

- **Electoral College Composition:**

Article 54 of the constitution says: "The President shall be elected by the members of an **electoral college** consisting of:

- (a) The elected members of both Houses of Parliament and
- (b) The elected members of the Legislative Assemblies of the States (including National Capital Territory of Delhi and the Union Territory of Pondicherry vide the Constitution 70th amendment Act, 1992)."

- **Oath/Affirmation:** Taken in the presence of the Chief Justice of India, pledging to uphold the Constitution.

Term of Office

- Duration: Five years, with the possibility of re-election.

- Must be a citizen of India.
- Minimum age of 35 years.
- Must be qualified to be elected to the Lok Sabha.
- Cannot hold any office of profit under the government.

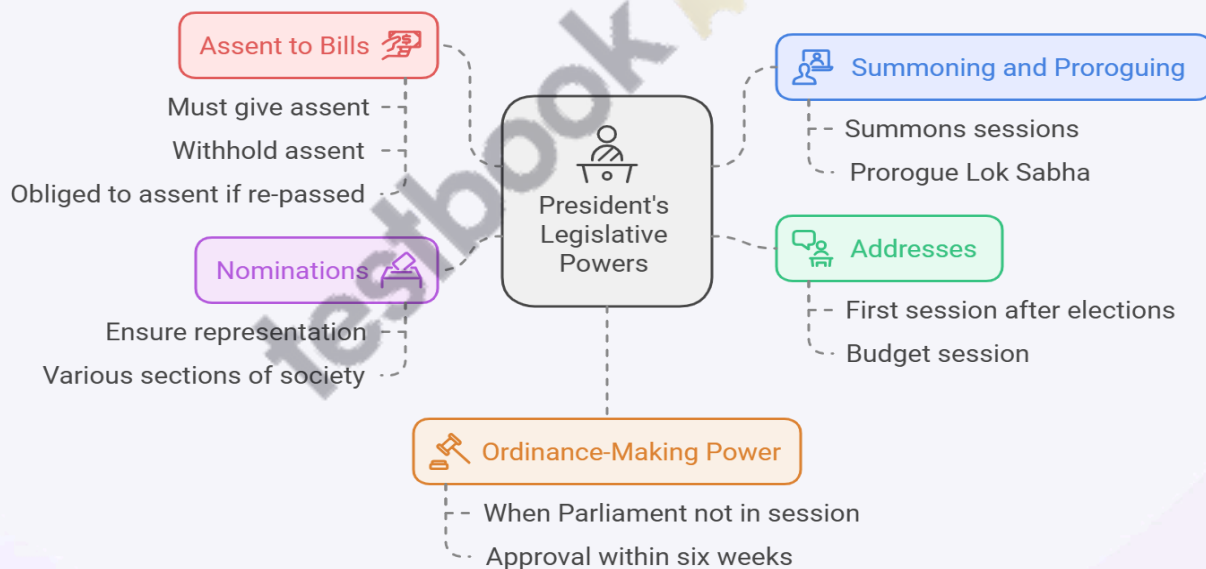
- **Article 62:** Provisions for filling a vacancy before the term expires.

Powers and Functions of the President

1. Executive Powers

- Holds the **executive authority** on behalf of the Union.
- **Key Appointments:**
 - Appoints Governors, Judges of the Supreme Court and High Courts, and other high officials.
- **Prime Minister and Council of Ministers:**
 - Appoints the Prime Minister and, on their advice, other ministers.
 - Can exercise discretion in exceptional circumstances, especially in a hung Parliament.
- **Majority Proof in Lok Sabha:**
 - Ensures the Council of Ministers enjoys the confidence of the Lok Sabha and can request a vote of confidence.
- **Supreme Commander of Armed Forces:** Holds the highest authority over the military.

2. Legislative Powers



3. Financial Powers

- **Money Bills:**
 - No money bill can be introduced in Parliament without the President's recommendation.
- **Annual Financial Statement:**
 - Presented by the President, detailing estimated revenue and expenditure.

- **Financial Control:**

- The President's approval is necessary for all proposals related to taxation and government expenditure.

4. Emergency Powers

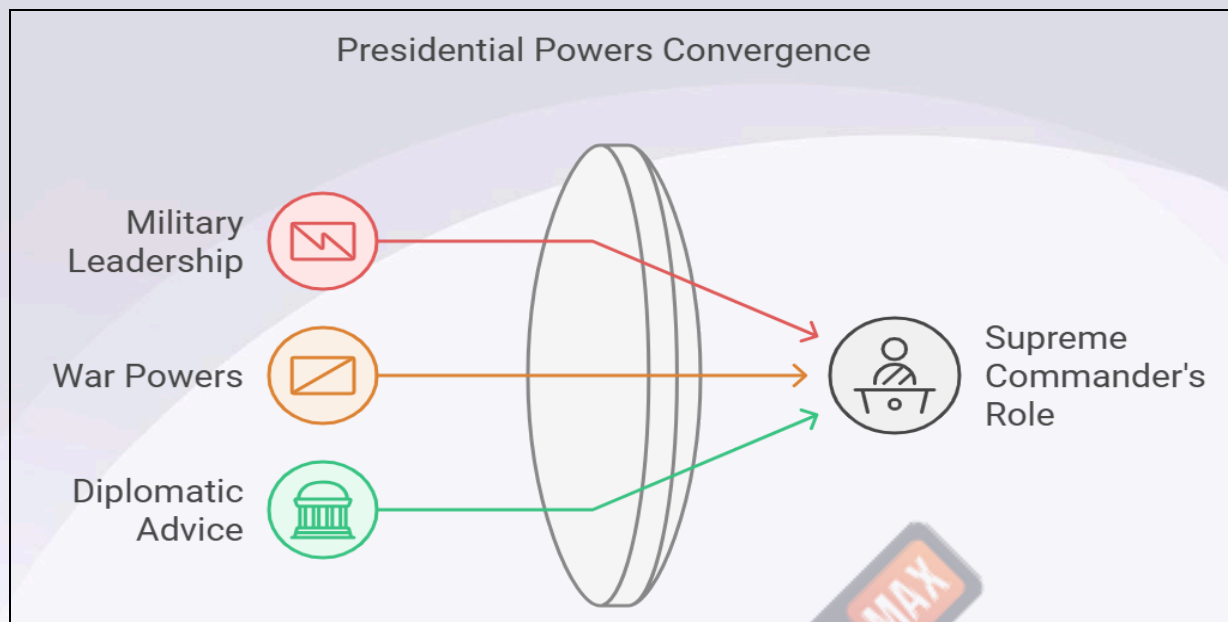


- **National Emergency (Article 352):**
 - It can be declared during war, external aggression, or armed rebellion.
 - Duration: Indefinite, but must be approved by Parliament every six months.
- **Failure of State Constitutional Machinery (Article 356):**
 - It can be declared if the constitutional machinery in a state fails.
 - Duration: Maximum of three years, requires Parliamentary approval.
- **Financial Emergency (Article 360):**
 - It can be declared if the financial stability of the nation is threatened.
 - Duration: Indefinite, allows the central government to give directions to states.

5. Diplomatic Powers

- **International Representation:**
 - Represents India in international forums and affairs.
- **Treaty Negotiation:**
 - Treaties and agreements are negotiated in the President's name, but the Prime Minister and Cabinet conduct actual negotiations.
- **Diplomatic Appointments:**
 - Appoint ambassadors and receive foreign diplomats.

6. Military Powers



7. Pardoning Powers (Article 72)

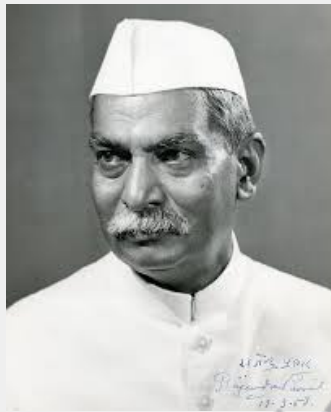
- **Pardons:**
 - Can grant pardons, reprieves, and remissions of punishment.
- **Applicable Cases:**
 - Offenses against Union law.
 - Sentences by Military Courts.
 - Death sentences.

ARTICLES RELATED TO THE PRESIDENT

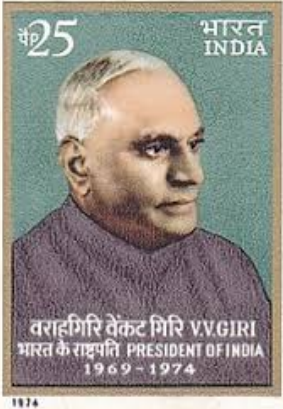
Article	Title	Description
52	Establishment of the President	Establishes the office of the President of India.
53	Executive Power	Vests the executive power of the Union in the President, to be exercised either directly or through subordinate officers.
58	Eligibility for President	Outlines the qualifications and disqualifications for being elected as President.
62	Date and Term of Election	Provides for filling a vacancy in the office of the President before the term expires.
65	President's Role in Government	Clarifies that the President acts on the advice of the Council of Ministers, except in certain cases.
74	Council of Ministers	States that the President must act according to

		the advice of the Council of Ministers.
75	Appointment of Prime Minister and Council of Ministers	Details the appointment of the Prime Minister and other ministers by the President.
86	President's Power to Address Parliament	Allows the President to address either House of Parliament or both Houses.
111	Assent to Bills	Mandates the President to give assent to bills passed by Parliament.
123	Ordinance-Making Power	Grants the President the power to promulgate ordinances when Parliament is not in session.

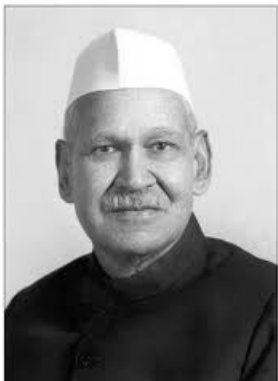
Presidents of India

Name	Term Start	Term End	Notable Facts
 Dr. Rajendra Prasad	Jan 26, 1950	May 13, 1962	First President of India; only President to serve two terms.
 Dr. Sarvepalli Radhakrishnan	May 13, 1962	May 13, 1967	Renowned philosopher; his birthday is celebrated as Teacher's Day in India.

 Dr. Zakir Husain	May 13, 1967	May 3, 1969	First Muslim President; died in office.
 V. V. Giri (Acting)	May 3, 1969	Jul 20, 1969	Served as Acting President after Dr. Husain's death.
 Mohammad Hidayatullah (Acting)	Jul 20, 1969	Aug 24, 1969	Served as Acting President after V. V. Giri resigned to contest elections.

 V. V. Giri	Aug 24, 1969	Aug 24, 1974	The only person to have served both as Acting President and President.
 Fakhruddin Ali Ahmed	Aug 24, 1974	Feb 11, 1977	Second President to die in office.
 B. D. Jatti (Acting)	Feb 11, 1977	Jul 25, 1977	Served as Acting President after Ahmed's death.

 Neelam Sanjiva Reddy	Jul 25, 1977	Jul 25, 1982	Elected unopposed; youngest President to assume office.
 Giani Zail Singh	Jul 25, 1982	Jul 25, 1987	First Sikh President; served during Operation Blue Star.
 R. Venkataraman	Jul 25, 1987	Jul 25, 1992	Served with four different Prime Ministers.

 Dr. Shankar Dayal Sharma	Jul 25, 1992	Jul 25, 1997	Former Vice President and Chief Minister of Bhopal.
 K. R. Narayanan	Jul 25, 1997	Jul 25, 2002	First Dalit President; former diplomat.
 Dr. A. P. J. Abdul Kalam	Jul 25, 2002	Jul 25, 2007	Renowned scientist; known as the "Missile Man of India."
 Pratibha Patil	Jul 25, 2007	Jul 25, 2012	First woman President of India.

 Pranab Mukherjee	Jul 25, 2012	Jul 25, 2017	Held various key ministerial positions before the presidency.
 Ram Nath Kovind	Jul 25, 2017	Jul 25, 2022	Former Governor of Bihar; second Dalit President.
 Droupadi Murmu	Jul 25, 2022	Incumbent	First tribal woman to hold the office; youngest President to date.